

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Bench
Mr. Justice Shahid Waheed
Ms. Justice Musarrat Hillali
Mr. Justice Salahuddin Panhwar

CRIMINAL PETITION NO.974-L OF 2025
(On appeal against the judgment dated 26.06.2025 passed by the
Lahore High Court, Lahore, in Crl. Misc. No.32061-B/2025)

Muzammil Hussain.		...	...	Petitioner
	<i>Versus</i>			
The State and another		...	...	Respondents

For the petitioner	:	Sh. Ishtiaq Ahmed Khan, ASC (through video link from Lahore)
For the State	:	Ms. Meemona Ehsan-ul-Haq, DPG Pb. Asif Khan, Inspector & Asif Javed, ASI.
Date of hearing	:	16.09.2025

JUDGMENT

Salahuddin Panhwar, J. Through the impugned order dated 26.06.2025, the petitioner has been declined post-arrest bail in case FIR No.656, dated 18.04.2025, registered at Police Station Kotwali, District Jhang, under sections 337-A(iii), 337-L(2), 148 and 149 of the Pakistan Penal Code (**PPC**); hence, instant petition for leave to appeal.

2. Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case due to previous enmity, as there is ongoing litigation between the parties; that there is an unexplained delay of 14 days in lodging the FIR; that nothing is to be recovered from the possession of the petitioner; that he has been confined in jail since 24.04.2025; and that, being a first-time offender, he is entitled to the concession of bail. Conversely, learned DPG opposes the bail plea, contending that the petitioner has been specifically nominated in the FIR with the clear allegation of causing fist blows to the complainant, and that the alleged offence falls within the prohibitory clause of Section 497 of the Code of Criminal Procedure, (**Cr.P.C.**).

3. We have heard the learned counsel for the parties and examined the impugned order as well as the medico-legal record of the victim. The learned High Court declined bail primarily on the ground that Section 337-A(iii), P.P.C. was attracted, owing to the case falls within the ambit of the prohibitory clause contained in Section 497(1) Cr.P.C. However, the medical certificate issued by the ENT Specialist indeed records “*external nasal deformity and bony crepitus*”, categorizing the injury as **Shajjah-i-Hashimah** falling under Section 337-A(iii), P.P.C. It is pertinent to note that under Section **337-N(2)**, P.P.C., in matters of *hurt*, a sentence of imprisonment by way of Ta’zir may only be awarded if the convict is shown to be a “*previous convict, habitual, hardened, desperate or dangerous criminal*”, or if the offence has been committed in the name or on the pretext of honour. In cases of causing hurt, unless the conditions prescribed under Section 337-N(2), P.P.C. are specifically attracted to the facts of the case, no lawful sentence of imprisonment by way of Ta’zir can be imposed. Significantly, in the present matter, neither the learned trial Court nor the High Court has made any observation or recorded any finding that the appellants possessed such antecedents or credentials as contemplated under the said provision. Reliance in this regard may be placed upon the case of ‘**Abdul Wahab and others v. The State and others**’ (2019 SCMR 516).

4. No doubt, the alleged offence falls within the prohibitory clause of Section 497(1), Cr.P.C., yet that alone is not a valid ground to decline bail to the petitioner, particularly when his case squarely falls within the ambit of Section 337-N(2), P.P.C., a provision that may appropriately be considered even at the bail stage. It is a well-settled principle, that the gravity or horror of a heinous crime, by itself, cannot obstruct the grant of bail if the circumstances otherwise render the guilt of the accused as calling for further inquiry; nor can bail be withheld as a substitute for punishment. This principle finds support from the dictum laid down by this Court in the case of ‘**Husnain Mustafa v. The State and another**’ (2019 SCMR 1914).

5. In the present case, the prosecution has failed to demonstrate any exceptional circumstance warranting denial of bail. As the petitioner has been in custody since 24.04.2025; no recovery is to be made from him; and the trial is not likely to conclude in the near future. The FIR itself reflects an unexplained **delay of 14 days** in its lodgment, for which no plausible justification is available on the record. Such inordinate delay, *prima facie*, erodes the spontaneity of the occurrence and creates room for deliberation and consultation. It has further come on record that a co-accused has already

been admitted to bail; hence, on the principle of consistency, the petitioner is also entitled to the same relief. The background of previous enmity between the parties, as reflected from F.I.R. No.291/2025 lodged by the complainant under Section 406, P.P.C. at Police Station Saddar, Jhang, further emphasizes the need for cautious assessment. In these circumstances, the case of the petitioner squarely calls for further inquiry within the ambit of Section 497(2), Cr.P.C., and his continued incarceration would serve no useful purpose. Refusal of bail in such situation would be contrary to the settled principle that bail is the rule and refusal is exception, to be invoked only upon the existence of exceptional grounds.

6. We are, therefore, of the tentative view that the petitioner has made out a case for grant of post-arrest bail. Consequently, this petition is converted into appeal and allowed. The impugned orders of the learned courts below are set aside and the petitioner Muzammil Hussain is admitted to post-arrest bail subject to his furnishing surety bond in the sum of Rs.100,000/- (Rupees One Hundred Thousand Only) with two sureties in the like amount to the satisfaction of the trial Court concerned. Needless to add, any attempt by the petitioner to misuse the concession of bail shall entitle the prosecution to seek cancellation thereof.

7. The observations made herein above are tentative and confined solely to the disposal of this bail application, and shall not prejudice the rights of the parties or the case on its merits.

Judge

Judge

Judge

Islamabad

16.09.2025

*M.Saeed/***

Approved for reporting.